THE STATE
versus
MARVELLOUS MUZVIDZWA

HIGH COURT OF ZIMBABWE
MUSITHU J
HARARE, 11 March 2026

Criminal Review Judgment

MUSITHU J:

1. The record of proceedings was placed before me for automatic review in terms of s 57 (1) of the Magistrates' Court Act [*Chapter 7:10*]. Upon examination of the record, I discovered that the proceedings were afflicted by a material irregularity arising from a clear misdirection on the part of the trial magistrate. Having correctly determined that no special circumstances existed, the learned magistrate nonetheless proceeded to depart from the statutorily prescribed minimum mandatory sentence without articulating any lawful basis for such departure, thereby committing a material misdirection.
2. The brief facts of the matter are as follows. The accused person Marvellous Muzvidzwa, a male adult aged 34 years, was arraigned before the court sitting at Mbare, Harare for contravening section 53 of the Road Traffic Act [Chapter 13:11], reckless driving and contravening section 5 of Statutory Instrument 168 of 2006, in that he drove a public service vehicle at a time when he had not undergone a re-test.
3. In count one, it was the State's case that on 26 November 2025, the accused person was alleged to have negligently driven a public passenger service motor vehicle, a Toyota Hiace, registration number AGL 8248, along Craster Road, Southerton, Harare, against oncoming traffic. Upon reaching the intersection of Highfields Road and Craster Road, which was being controlled by Traffic Police Officers, Constable Lunga and Constable Charamba, the accused was instructed to reverse his vehicle to allow free movement of traffic. Instead, the accused person accelerated his vehicle driving towards the Police Officers. He shouted at them and threatened to hit them

with his motor vehicle. Further, when the two constables attempted to apprehend the accused person, he grabbed Constable Charamba by the collar and tore his uniform.

4. As regards count two, it was alleged that on 26 November 2025, the accused person drove a Public Passenger Service Vehicle, namely a Toyota Hiace bearing registration number AGL 8248, with passengers on board, without a valid re-test as required by the Act.

5. The accused person pleaded not guilty and was tried on the charge of reckless driving in contravention of section 53(2) of the Road Traffic Act. He pleaded guilty on the charge of contravening section 5 of Statutory Instrument 168 of 2006. The accused person was found guilty on both counts and subsequently sentenced as follows;

> "Both counts are treated as one for the purposes of sentence.
> OFFENDER IS SENTENCED TO:
> 36 months' imprisonment of which 12 months imprisonment is suspended for 5 years on condition offender does not during that period, commit any offence involving negligent driving and for which, upon conviction he is a sentenced to imprisonment without the option of a fine.
>
> The remainder of 24 months' imprisonment is suspended on condition offender completes 820 hours of community service at Glennorah District Office."

6. Nothing turns on the conviction. It is the sentence imposed on the accused person that warrants interference by this court. It is a settled principle of our law that sentencing lies within the discretion of the trial court. However, that discretion is not unfettered. It must be exercised judicially, reasonably, and in accordance with the law. Where the legislature prescribes a minimum mandatory sentence, the court's discretion is limited. The court may only depart from such sentence where the statute permits, and only upon a proper and recorded finding of special circumstances. A failure to comply with this requirement constitutes a material misdirection warranting interference on review.

7. The facts demonstrate that the accused person showed a complete disregard for the safety of the passengers as well as the right of other road-users by deliberately driving on the wrong side of the road in the face of oncoming traffic. When instructed by the traffic Police to reverse, he defied lawful instructions, accelerated towards the officers, threatened to run them over, and physically assaulted one of them by grabbing his collar and tearing his uniform. Such conduct demonstrates a high degree of recklessness and disregard for lawful authority. It is precisely the type of conduct

that the legislature intended to deter through the imposition of a mandatory custodial penalty. Section 53(2) provides that:

> **"53 Reckless driving**
> (2) A person who drives a vehicle on a road recklessly shall be guilty of an offence and liable—
> (a) subject to section *eighty-eight A,* where the vehicle concerned was a commuter omnibus or a heavy vehicle, to imprisonment for a period not exceeding fifteen years and not less than two years; or
> (b) in any other case, to a fine not exceeding level twelve or to imprisonment for a period not exceeding ten years or to both such fine and such imprisonment." (Underlining for emphasis)

8. Section 53 of the Road Traffic Act prescribes a minimum mandatory sentence of two years' imprisonment where no special circumstances are found. In the present matter, the learned Trial Magistrate correctly appreciated that the offence under s 53 of the Road Traffic Act attracts a minimum mandatory custodial sentence in the absence of special circumstances and had correctly, in my view observed that no special circumstances existed. The learned Magistrate stated the following in her sentencing judgment:

> "On special circumstances he said he committed the offence because he was under pressure from his passengers who wanted to reach their destinations early. Such cannot be a special circumstances. Moreso everyone on the road has a destination to reach.
>
> What he has stated therefore cannot amount to special circumstances. I will therefore impose a sentence above the mandatory minimum sentence. To ensure the total is not harsh I shall take the two counts as one for sentence. There are no special circumstances and therefore he cannot escape prohibition from driving."

9. The reasoning of the learned magistrate on the question of special circumstances is sound. Pressure from passengers to reach a destination early is neither exceptional nor peculiar to the offence. It is an ordinary incident of public passenger transport and cannot, by any stretch of imagination, constitute special circumstance. The decision to impose community service was therefore a misdirection.

10. Upon examination of the record, this court addressed a query to the learned trial magistrate regarding the departure from the minimum mandatory sentence. The query reads as follows.

> "In his sentencing judgment, the learned Magistrate noted that the offence attracted a minimum mandatory sentence of two years in the absence of special circumstances.

> Can the learned Magistrate explain why he sentenced the accused person to community service in respect of count one in the absence of special circumstances?"

11. The trial magistrate responded as follows;

> "I have perused the query raised by the Honourable Judge and I concede that the two counts should not have been taken as one for the purpose of sentence.
>
> Further, I also concede that I erred in imposing the option of community service where the statute provides for a minimum sentence.
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> The error is greatly regretted."

12. The concession was properly made. While such candour is commendable, it confirms that the sentencing discretion was exercised on an incorrect legal footing. It is my view that a concession cannot cure an illegal sentence. The misdirection remains material and vitiates the sentence.

13. It is trite that sentencing is a matter within the discretion of the trial court. However, such discretion must be exercised judicially and in accordance with the law. Where the legislature has prescribed a minimum mandatory sentence, the court's discretion is curtailed. The court may only depart from such prescribed sentence where the statute expressly permits it, namely upon a finding of special circumstances, which must be clearly articulated and recorded.

14. A mandatory minimum sentence is peremptory. It removes the ordinary sentencing discretion of the court unless special circumstances are found to exist. According to s53 (1) of the Road Traffic Act special circumstances are defined as follows:

> "special circumstances" means special circumstances surrounding the commission of the offence concerned, but does not include special circumstances peculiar to the offender."

It is my view that special circumstances must thus be exceptional, peculiar, and directly connected to the commission of the offence. They must be expressly stated on the record. Ordinary mitigating factors such as being a first offender, family responsibilities, remorse, or personal hardship do not, without more, amount to special circumstances.

15. The facts of the matter disclose significant aggravation. The accused drove a public passenger service vehicle recklessly against oncoming traffic thereby putting the lives of the passengers and other road users at risk. The trial magistrate expressly found that no special circumstances existed. Having made that finding, the court had no

lawful basis to depart from the prescribed custodial sentence. The imposition of community service was therefore contrary to statute and unlawful.

16. In the result, therefore, I decline to certify the sentence as being in accordance with real and substantial justice.

MUSITHU J……